JUSTIA

Go to Previous Versions of the New York Consolidated Laws

2025 New York Laws
SOS - Social Services
Article 6-A - Domestic Violence Prevention Act
459-A - Definitions.

Universal Citation:
NY Soc Serv L § 459-A (2025)

Next >

§ 459-a. Definitions. As used in this article: 1. "Victim of domestic violence" means any person over the age of sixteen, any married person or any parent accompanied by his or her minor child or children in situations in which such person or such person's child is a victim of an act which would constitute a violation of the penal law, including, but not limited to acts constituting disorderly conduct, harassment, aggravated harassment, sexual misconduct, forcible touching, sexual abuse, stalking, criminal mischief, menacing, reckless endangerment, kidnapping, assault, attempted assault, attempted murder, criminal obstruction of breathing or blood circulation, strangulation, identity theft, grand larceny or coercion; and

(i) such act or acts have resulted in actual physical or emotional injury or have created a substantial risk of physical or emotional harm to such person or such person's child; and

(ii) such act or acts are or are alleged to have been committed by a family or household member.

2. "Family or household members" mean the following individuals:

(a) persons related by consanguinity or affinity;

(b) persons legally married to one another;

(c) persons formerly married to one another regardless of whether they still reside in the same household;

(d) persons who have a child in common regardless of whether such persons are married or have lived together at any time;

(e) unrelated persons who are continually or at regular intervals living in the same household or who have in the past continually or at regular intervals lived in the same household;

(f) persons who are not related by consanguinity or affinity and who are or have been in an intimate relationship regardless of whether such persons have lived together at any time. Factors that may be considered in determining whether a relationship is an "intimate relationship" include, but are not limited to: the nature or type of relationship, regardless of whether the relationship is sexual in nature; the frequency of interaction between the persons; and the duration of the relationship. Neither a casual acquaintance nor ordinary fraternization between two individuals in business or social contexts shall be deemed to constitute an "intimate relationship"; or

(g) any other category of individuals deemed to be a victim of domestic violence as defined by the office of children and family services in regulation.

3. "Parent" means a natural or adoptive parent or any individual lawfully charged with a minor child's care or custody.

4. "Residential program for victims of domestic violence" means any residential care program certified by the department and operated by a not-for-profit organization in accordance with the regulations of the department for the purpose of providing emergency shelter, services and

care to victims of domestic violence. Residential programs for victims of domestic violence shall include, but shall not be limited to:

(a) "Domestic violence shelters", which shall include any residential care facility organized for the exclusive purpose of providing emergency shelter, services and care to victims of domestic violence and their minor children, if any;

(b) "Domestic violence programs" which shall include any facility which otherwise meets or would meet the requirements of paragraph (a) of this subdivision, except that victims of domestic violence and their minor children, if any, constitute at least seventy percent of the clientele of such program; and

(c) "Safe home networks" which shall include any organized network of private homes offering emergency shelter and services to victims of domestic violence and their minor children, if any. Such network shall be coordinated by a not-for-profit organization.

5. "Non-residential program for victims of domestic violence" means any program operated by a not-for-profit organization, for the purpose of providing non-residential services to victims of domestic violence, including, but not limited to, information and referral services, advocacy, counseling, and community education and outreach activities and providing or arranging for hotline services. Victims of domestic violence and their children, if any, shall constitute at least seventy percent of the clientele of such programs.

Next ›

Disclaimer: These codes may not be the most recent version. New York may have more current or accurate information. We make no warranties or guarantees about the accuracy, completeness, or adequacy of the information contained on this site or the information linked to on the state site. Please check official sources.

JUSTIA

Go to Previous Versions of the New York Consolidated Laws

2025 New York Laws
SOS - Social Services
Article 6-A - Domestic Violence Prevention Act
459-B - Residential Services for Victims of Domestic Violence.

Universal Citation:
NY Soc Serv L § 459-B (2025)

Previous Next

§ 459-b. Residential services for victims of domestic violence. In accordance with section one hundred thirty-one-u of this chapter and the regulations of the office of children and family services, a social services district shall offer and provide necessary and available emergency shelter and services for up to ninety days at a residential program for victims of domestic violence to a victim of domestic violence who was residing in the social services district at the time of the alleged domestic violence whether or not such victim is eligible for public assistance. Two forty-five day extensions of necessary and available emergency shelter may be granted beyond the maximum length of stay at a residential program for victims of domestic violence for residents who continue to be in need of emergency services and temporary shelter. If the victim of domestic violence has a service animal as such

term is defined in section one hundred twenty-three-b of the agriculture and markets law, or therapy dog as such term is defined in section one hundred eight of the agriculture and markets law, respectively, such service animal or therapy dog shall be allowed to accompany the victim at the residential program authorized pursuant to this section, so long as such accompaniment would not create an undue burden as defined by section two hundred ninety-six of the executive law.

Where such accompaniment would constitute an undue burden, the residential program shall make reasonable efforts to facilitate placement of such animal at an off-site animal care facility or if reasonable efforts fail, provide referral to one or more off-site animal care facilities. Such off-site animal care may include, but not be limited to, boarding at a veterinary hospital or under the auspices of a duly incorporated humane society, or duly incorporated animal protection association approved for such purpose by the department of agriculture and markets.

Nothing in this section shall be construed to limit any rights or obligations provided pursuant to federal or state law, including but not limited to providing reasonable accommodations for individuals with disabilities.

‹ Previous Next ›

Disclaimer: These codes may not be the most recent version. New York may have more current or accurate information. We make no warranties or guarantees about the accuracy, completeness, or adequacy of the information contained on this site or the information linked to on the state site. Please check official sources.

JUSTIA

Go to Previous Versions of the New York Consolidated Laws

2025 New York Laws
SOS - Social Services
Article 6-A - Domestic Violence Prevention Act
459-C - Non-Residential Services for Victims of Domestic Violence.

Universal Citation:
NY Soc Serv L § 459-C (2025)

Previous Next

§ 459-c. Non-residential services for victims of domestic violence. 1. In accordance with the provisions of this section and the regulations of the department, a social services district shall offer and provide non-residential services including but not limited to, information and referral services, advocacy, counseling, community education and outreach activities, and hotline services, to a victim of domestic violence whether or not the victim is eligible for public assistance. A social services district may provide such non-residential services directly or may purchase such services from a not-for-profit organization operating a residential program and/or a non-residential program for victims of domestic violence.

2. To the extent that funds are appropriated expressly therefore and a social services district has exhausted its allocation under title XX of

the federal social security act, state reimbursement shall be available for fifty percent of the expenditures made by a social services district for those non-residential services provided to victims of domestic violence which are included in the social services district's multi-year consolidated services plans and annual implementation reports approved by the department pursuant to section thirty-four-a of this chapter.

‹ Previous Next ›

Disclaimer: These codes may not be the most recent version. New York may have more current or accurate information. We make no warranties or guarantees about the accuracy, completeness, or adequacy of the information contained on this site or the information linked to on the state site. Please check official sources.

JUSTIA

Go to Previous Versions of the New York Consolidated Laws

2025 New York Laws
SOS - Social Services
Article 6-A - Domestic Violence Prevention Act
459-D - Reporting Requirements.

Universal Citation:
NY Soc Serv L § 459-D (2025)

Previous Next

§ 459-d. Reporting requirements. The commissioner shall submit a report prior to December fifteenth, nineteen hundred eighty-eight and annually thereafter to the governor and the legislature regarding the implementation of this article. Such report shall include:

1. the number of persons estimated to have been assisted in programs covered by this article;

2. the number of persons estimated to have been denied shelter and/or services;

3. the amount of public and private funds for approved programs by service type;

4. the amount of funds used for the administration and staffing of such programs;

5. the occupancy rate and length of stay by residential program;

6. the name and description of new programs developed by service type;

7. the name and description of programs in danger of closing that received funds and the status of such programs;

8. the name and description of programs that closed during the reporting year and the reason for such closure;

9. the number of individuals who requested and received transitional services and the effect of providing such services to victims of domestic violence and their families;

10. the name and description of programs which received technical assistance and the effect of such assistance;

11. a schedule showing the approved daily rates of reimbursement payable to residential programs for victims of domestic violence pursuant to section one hundred thirty-one-u of this chapter; and

12. all such other matters as may be necessary to inform the governor and the legislature regarding the implementation and effectiveness of programs covered by this article.

‹ Previous Next ›

Disclaimer: These codes may not be the most recent version. New York may have more current or accurate information. We make no warranties or guarantees about the accuracy, completeness, or adequacy of the information contained on this site or the information linked to on the state site. Please check official sources.

JUSTIA

Go to Previous Versions of the New York Consolidated Laws

2025 New York Laws
SOS - Social Services
Article 6-A - Domestic Violence Prevention Act
459-E - Technical Assistance.

Universal Citation:
NY Soc Serv L § 459-E (2025)

Previous Next

§ 459-e. Technical assistance. To the extent that funds are available, the department shall arrange for or provide technical assistance to residential and non-residential programs for victims of domestic violence. Technical assistance shall include, but shall not be limited to, budgeting techniques, fund raising and program management.

Previous Next

Disclaimer: These codes may not be the most recent version. New York may have more current or accurate information. We make no warranties or guarantees about the accuracy, completeness, or adequacy of the information contained on this site or the information linked to on the state site. Please check official sources.

JUSTIA

Go to Previous Versions of the New York Consolidated Laws

2025 New York Laws
SOS - Social Services
Article 6-A - Domestic Violence Prevention Act
459-F - Payment for Services.

Universal Citation:
NY Soc Serv L § 459-F (2025)

Previous Next

§ 459-f. Payment for services. Payments by a social services district to a residential program for victims of domestic violence for the costs of emergency shelter and services provided to a victim of domestic violence at the daily reimbursement rate determined by the department in accordance with section one hundred thirty-one-u of this chapter shall be reduced by the sum of any other reimbursement available for such costs.

Previous Next

Disclaimer: These codes may not be the most recent version. New York may have more current or accurate information. We make no warranties or guarantees about the accuracy, completeness, or adequacy of the information contained on this site or the information linked to on the state site. Please check official sources.

JUSTIA

Go to Previous Versions of the New York Consolidated Laws

2025 New York Laws
SOS - Social Services
Article 6-A - Domestic Violence Prevention Act
459-G - Cooperation of an Abuser Not Required as a Condition of Eligibility for Benefits or Services.

Universal Citation:
NY Soc Serv L § 459-G (2025)

Previous Next

§ 459-g. Cooperation of an abuser not required as a condition of eligibility for benefits or services. 1. Neither the state, a political subdivision of the state, a public authority, nor any employee or agent thereof shall, in any way, condition eligibility or receipt of services or benefits by a victim of domestic violence, as defined in this article, by requiring the victim to contact the person who perpetrated such domestic violence or by requiring the person who perpetrated such domestic violence to complete any forms, provide any information, appear in person, or cooperate in any other manner as a part of such victim's application for or process of certification for continued receipt of any services or benefits in this state.

2. Although such information or cooperation shall not be required as a condition of eligibility for or receipt of such services or benefits, in the event the governmental entity, employee or agent seeks any such information or cooperation, such entity, employee or agent shall, if informed consent is given in writing by such victim of domestic violence, provide an intermediary to make such contact in a manner that protects the privacy, confidentiality and current location of the victim. In the event the governmental entity, employee or agent seeks any such information or cooperation to comply with any federal law, regulation or mandate, such entity, employee or agent shall so advise the victim of domestic violence and provide an intermediary to make such contact on behalf of the victim in a manner that will protect the privacy, confidentiality and current location of the victim.

‹ Previous Next ›

Disclaimer: These codes may not be the most recent version. New York may have more current or accurate information. We make no warranties or guarantees about the accuracy, completeness, or adequacy of the information contained on this site or the information linked to on the state site. Please check official sources.

JUSTIA

Go to Previous Versions of the New York Consolidated Laws

2025 New York Laws
SOS - Social Services
Article 6-A - Domestic Violence Prevention Act
459-H - Confidentiality.

Universal Citation:
NY Soc Serv L § 459-H (2025)

Previous

§ 459-h. Confidentiality. 1. The street address of any residential program for victims of domestic violence applying for funding pursuant to this article shall be confidential and may be disclosed only to persons designated by rules and regulations of the department.

2. All information related to the general location or specific street address of a structure anticipated to house a residential program for victims of domestic violence that is contained in any application submitted to a state or local agency or any instrumentality thereof prior to the filing of an application for funding pursuant to this article shall be kept confidential by those entities and their employees and may be disclosed only to persons designated by the rules and regulations of the department.

Disclaimer: These codes may not be the most recent version. New York may have more current or accurate information. We make no warranties or guarantees about the accuracy, completeness, or adequacy of the information contained on this site or the information linked to on the state site. Please check official sources.